

#	Case Name	Tentative
		To invalidate an arbitration provision, both procedural and substantive unconscionability must be present. <i>Armendariz v. Foundation Health Psychare Services, Inc.</i> (2000) 24 Cal. 4th 83, 114. The provision in the arbitration provision that exempts unlawful detainer matters from arbitration is substantively unconscionable. The court orders that provision stricken. There are no other substantively unconscionable provisions in the arbitration provision. The fact that the lease was offered on a take it or leave it basis presents a modicum of procedural unconscionability in the context of a commercial lease. However, as the court has stricken the only substantively unconscionable provision, plaintiff has failed to show that unconscionability prevents the enforcement of the arbitration provision. As quoted above, the arbitration provision carves out injunctions. Therefore, the court ORDERS PLAINTIFF TO ARBITRATE ALL OF ITS CLAIMS, with the exception of the Sixth Cause of Action asserting a claim under Bus. & Prof. Code Section 17200 et seq. That cause of action is ORDERED STAYED pending the outcome of the arbitration. This action is ordered STAYED pending the outcome of the arbitration. The case management conference is VACATED. The court sets an Arbitration Review Hearing for March 8, 2027 at 9:00 a.m. in this department. Five days before the hearing, the parties are ordered to submit a joint status report. Defendant Dybnis to give notice of this ruling.
58.		
59.	Abdallah v. Anzaldo 2024-01399584	Defendant Vanessa Ferragamo Gutierrez, M.D.'s motion for summary judgment is GRANTED. Dr. Gutierrez has met her burden to show plaintiffs Shatha Ahmad Abdallah, Mazen Nemetallah, and Laila Nemetallah's sole cause of action for medical negligence has no merit. (See Code Civ. Proc., § 437c, subds. (a), (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 [burden]; <i>Johnson v. Superior Court</i> (2006) 143 Cal.App.4th 297, 305 [elements, standard of care]; <i>Chakalis v. Elevator Solutions, Inc.</i> (2012) 205 Cal.App.4th 1557, 1572

#	Case Name	Tentative
		[causation]; see also Def. SSMF Nos. 1-17; Ball Decl. ¶¶ 1-21.) Plaintiffs have chosen not to oppose this motion and have therefore failed to meet their shifted burden to demonstrate a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (p)(2) [burden]; see also ROA No. 189 [notice of non-opp.] .) Moving party shall give notice of this ruling.
60.		
61.	Vizcarra v. Bevmó! Inc. 2023-01348855	Defendant/Cross-Complainant Canyon Plaza, Inc.'s Motion to File Summary Judgment Motion Less than 60 Days After Cross-Defendant Beverages & More, Inc.'s General Appearance in this Action is DENIED. Defendant/Cross-Complainant's alternative request for a continuance of the trial date, a request which Cross-Defendant Beverages & More, Inc. does not oppose, is GRANTED. The Trial in this matter is CONTINUED to February 1, 2027 at 9:30 a.m. in this department. All deadlines calculated from the date of trial which have not already passed shall be calculated from the continued trial date. A continuance of the trial date is necessary to permit Cross-Defendant Beverages & More, Inc. an opportunity to conduct discovery so it may potentially oppose Cross-Complainant's Motion for Summary Judgment/Adjudication. The continuance also permits Cross-Complainant to remedy the defects in the timing of its Motion for Summary Judgment/Adjudication directed towards Cross-Defendant Beverages & More, Inc. Moving Party shall provide notice of this ruling.
62.		
63.		
64.		
65.		